

R.S. Savita @ Ravindra Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 November 2015 · Writ - C No. 62289 of 2015 · **Writ dismissed; petitioner relegated to Clause 6.5 / Consumer Forum**

HEADNOTE

A consumer dissatisfied with a bill of demand raised by the Electricity Department may challenge it under Clause 6.5 of the Electricity Supply Code, 2005 or before the Electricity Consumer Forum. The High Court declined to examine the bill in writ and dismissed the petition.

FACTUAL SUMMARY

R.S. Savita alias Ravindra Kumar invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and two others over a bill of demand raised by the Electricity Department. The Division Bench recorded no particulars of the connection, tariff, or amount of the demand. Counsel for the parties were heard. The Court treated the grievance as dissatisfaction with the bill and did not inquire into its correctness.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-of-demand-challenge-clause-6.5

HOLDING

A consumer who is not satisfied with a bill of demand raised by the Electricity Department may challenge it by an appropriate application under Clause 6.5 of the Electricity Supply Code, 2005, or by approaching the Electricity Consumer Forum; a writ petition raising that grievance is dismissed. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A consumer dissatisfied with a bill of demand raised by the Electricity Department may challenge it under Clause 6.5 of the Electricity Supply Code, 2005 or before the Electricity Consumer Forum. The High Court declined to examine the bill in writ and dismissed the petition. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL OF DEMAND

The Court did not examine the bill and left the petitioner to Clause 6.5 or the Consumer Forum. ¶ 1